

| International Military Tribunal structure                                                              |             |                                                                                                                                                                                                      |                                            |                                     |                                              |
|--------------------------------------------------------------------------------------------------------|-------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------|-------------------------------------|----------------------------------------------|
| Participants                                                                                           |             | French                                                                                                                                                                                               | British                                    | American                            | Soviet                                       |
| <br>Judges            | Main        | Professor Henri Donnedieu de Vabres                                                                                                                                                                  | Lord Justice Colonel Sir Geoffrey Lawrence | Francis Biddle                      | Major General Iona Nikitchenko               |
|                                                                                                        | Alternative | Robert Falco                                                                                                                                                                                         | Sir Norman Birkett                         | John J. Parker                      | Lieutenant Colonel Alexander Volchkov        |
| <br>Chief prosecutors |             | François de Menthon, later replaced by Auguste Champetier de Ribes                                                                                                                                   | Attorney General Sir Hartley Shawcross     | Associate Justice Robert H. Jackson | Lieutenant General Roman Andriyovych Rudenko |
| <br>Defense           |             | Mostly German                                                                                                                                                                                        |                                            |                                     |                                              |
|                                                                                                        |             | At least one for each defendant, including Otto Stahmer (for Hermann Göring), Hans Flächsner (Albert Speer), Günther von Rohrscheidt and Alfred Seidl (Rudolf Hess), and Rudolf Merkel (the Gestapo) |                                            |                                     |                                              |

Solution to the Jewish Question. He was boldly unapologetic, lying outrageously and insisting that the Nazi leadership had only done what all war leaders do to ensure their country's survival.

On the other hand, Albert Speer, Hitler's armaments minister, was charming and debonair, skillfully offering all the information the court asked for. He apologized profusely for the terrors the Nazis had committed with such apparent sincerity that he was given just a 20-year prison sentence and spared the death penalty—unlike Göring. It was only later that the true depth of Speer's involvement came to the fore.

**Legal defense**

The Nazi leaders attempted several defenses. One was that the crimes of which they were accused were *ex post facto*, or retroactive, laws—

that is, the crimes were only identified as crimes for the first time in the London Charter, which laid out the guidelines for the trials long after the crimes had been committed. Another was that the trials were not fair and impartial, but were victor's justice brought by the Allies against the Germans while ignoring similar crimes committed by their own troops. A third was that they had been acting under orders.

The tribunal dismissed the *ex post facto* argument by following the precedent for war crimes set by the Hague Conventions of 1899 and 1907, which prohibited certain methods of warfare. In relation to crimes against peace, they referred to the 1928 Kellogg–Briand Pact (or the Pact of Paris), by which signatory states promised not to attempt to solve disputes through

waging war. Crucially, though, it was argued that even if there was no precedent in law—as with crimes against humanity—the Nazi crimes were so appalling that justice would not be served if they were to go unpunished.

**Condemnation and execution**

In the end, the tribunal found all but three of the 24 accused men guilty. Twelve of them were sentenced to death, and the rest were given prison sentences ranging from 10 years to life. On October 16, 1946, 10 of the men condemned to death were taken to the prison gymnasium and hanged. As he was led to the gallows, Fritz Sauckel shouted, "I die innocent. The verdict was wrong."

Hermann Göring had escaped his fate by committing suicide by taking a cyanide pill the night »